



STORE 7006 Brampton
49 First Gulf Blvd
Brampton, ON L6W 4R8
(905)457-3916

Rental Center Hours

MON 6A- 9P TUE 6A- 9P WED 6A- 9P THU 6A- 9P FRI 6A- 9P SAT 7A- 8P SUN 8A- 8P

CONTRACT #: 339459
Status: CLOSED

Ontario heating and cooling Inc.
3424 DORCAS ST
Mississauga, ON L4T 1M8
(416) 200-0905

ACTUAL DURATION
2 Weeks, 20 Hours, 51 Minutes

Deposit Trans:	Register #: 90	Transaction #: 28994	Date: 03/08/24	eDeposit #: 7006240308073160033945900
Charge Trans:	Register #: 90	Transaction #: 37318	PO #: okd5	Date: 03/23/24 eDeposit #: 7006240308073160033945900
Agent Name:	PAVITTERJEET DHILLON	Date Out:	03/08/2024 - 6:47 PM	
		Date Due:	03/22/2024 - 4:47 PM	
		Date In:	03/23/2024 - 3:38 PM	

Tool Description	Charges	Amount	
Scaffold Tower 10' (11-073-00044)	Tool Rental Fee	\$396.00	Rental Subtotal \$396.00
(1) Scaf-Toggle Pin	SubTotal	\$396.00	GST \$19.80
(1) Scaf-Frame 5'x5'			HST \$31.68
(1) Scaf-Insert Pin w/Spring Retainer			Contract Total \$447.48
(1) Scaf-Cross Brace 7'			Deposit - PAID 03/08/24 -\$100.00
(1) Scaf-Squaring Brace 7'			(VISA ending 2829)
(1) Scaf-End Guard Panel 5'			Balance Charged \$347.48
(1) Scaf-Side Guard Panel 7'			(VISA ending 4867)
(1) Scaf-Toeboard Guard Panel 7'			Outstanding Balance \$0.00
(1) Scaf-Platform 7'x19"			
(1) Scaf-Gravity Lock/Pigtail Pin			
(1) 8" Scaffold Caster			

RENTAL FEE CALCULATOR DISCLAIMER

Home Depot uses a Rental Calculator to insure our customers to get the lowest rates possible for the time they had the tool.

TERMS & CONDITIONS

I agree that no representative of The Home Depot is authorized to make any promise, warranty, or representation to me other than those reflected in writing in the Agreement. I agree to the Terms & Conditions and understand that the Agreement cannot be modified or changed except in writing signed by both parties. With respect to equipment I am renting, I have received the equipment referenced in the Agreement. In the event that I am returning equipment, I acknowledge and agree that I am returning the listed rental equipment, the total charges are correct, and additional charges may apply if the equipment is returned damaged.

Terms and Conditions of Rental Agreement – Tools & Equipment

1. GENERAL RESPONSIBILITIES.

This Rental Agreement ("Agreement") is between Home Depot of Canada Inc. ("The Home Depot") and the customer identified on page 1 of this Agreement ("Customer" or "You"). The Home Depot will provide You the tool(s) identified on page 1 of this Agreement (the "Equipment") "as is" and in good working condition for the time ("Rented Period") and rental subtotal price identified on page 1 of this Agreement ("Rental Price"). You agree to return the Equipment prior to the expiration of the Rented Period, or to pay the additional rental fees described in Section 9 of this Agreement.

2. PHYSICAL CONDITION OF RENTAL EQUIPMENT

You acknowledge that, prior to taking the Equipment, You examined it and saw it in operation (if appropriate). You acknowledge that the Equipment is in good working condition except for any defect noted in this Agreement. It is your responsibility to return the rented Equipment to The Home Depot in the same working condition.

3. TITLE

You agree that The Home Depot shall retain all right to ownership and title to the Equipment. You also agree that no ownership or title to the Equipment is transferred to You under this agreement, and You will do no act nor permit anyone else to do any act inconsistent with The Home Depot's ownership and title in the Equipment.

4. USE OF THE EQUIPMENT

(a) You agree that You are satisfied with the instructions given by The Home Depot as to the proper and safe manner of using the Equipment or that You told The Home Depot that You are familiar with the proper and safe manner of using the Equipment. You further agree: (i) that the Equipment will be used at the designated address and only for the purpose for which the Equipment was manufactured and intended; (ii) to not sublease the Equipment; (iii) that You will keep the Equipment free and clear of all liens, charges and encumbrances; (iv) to use the Equipment only for its customary purpose and immediately discontinue use of the Equipment if it becomes unsafe and/or in a state of disrepair; (v) to use the Equipment in compliance with all applicable laws and regulations; (vi) to return the Equipment to The Home Depot in as good order and condition as when received; (vii) that, as indicated on page 1 of this Agreement, You have taken and read all manuals, written operating instructions, and warnings as supplied for the Equipment or that You are already familiar with these instructions and consequently declined, as indicated on this Agreement, to take these manuals and instructions.

(b) You further agree that You shall not: (i) alter or cover up any decal or insignia on the Equipment or remove any operational or safety instruction; (ii) use the Equipment in a negligent, illegal, unauthorized or abusive manner, or in any publication (print, audiovisual or electronic); or (iii) remove or utilize the Equipment outside of Canada.

5. RELEASE, INDEMNIFICATION AND WAIVER OF DAMAGES; RESPONSIBILITY FOR USE; NO WARRANTIES

You are responsible for the use of the Equipment. TO THE FULLEST EXTENT PERMITTED BY LAW, CUSTOMER INDEMNIFIES, RELEASES, WAIVES AND HOLDS THE HOME DEPOT HARMLESS FROM AND AGAINST ALL CLAIMS, LOSSES, EXPENSES (INCLUDING LEGAL FEES AND EXPENSES), LIABILITIES AND DAMAGES (INCLUDING PERSONAL INJURY, DEATH, PROPERTY DAMAGE, LOST PROFITS, AND SPECIAL, INCIDENTAL AND CONSEQUENTIAL DAMAGES) IN ANY WAY CONNECTED WITH THE EQUIPMENT, ITS OPERATION OR USE, OR ANY DEFECT OR FAILURE THEREOF OR A BREACH OF THE HOME DEPOT'S OBLIGATIONS HEREIN. CUSTOMER'S INDEMNITY OBLIGATION SHALL SURVIVE THE EXPIRATION OR TERMINATION OF THIS AGREEMENT.

The Home Depot does not design or manufacture the Equipment and is not the agent of the manufacturer or any other supplier of the Equipment.

YOU AGREE THAT NO WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE HAVE BEEN MADE BY THE HOME DEPOT IN CONNECTION WITH RESPECT TO THE EQUIPMENT RENTED. IN NO EVENT SHALL THE HOME DEPOT BE LIABLE FOR SPECIAL, DIRECT, INDIRECT OR CONSEQUENTIAL DAMAGES IN CONNECTION WITH THIS AGREEMENT.

You acknowledge acceptance of the Equipment on a "as is" and "where is" basis, with "all faults" and without any recourse whatsoever against The Home Depot.

IF ANY PART OF THIS SECTION IS DETERMINED INVALID BY A COURT OF COMPETENT JURISDICTION, CUSTOMER AGREES THAT THIS CLAUSE SHALL BE ENFORCEABLE TO THE FULLEST EXTENT PERMITTED BY LAW.

TO THE EXTENT THAT YOUR JURISDICTION OF RESIDENCE DOES NOT ALLOW (I) THE EXCLUSION OR LIMITATION OF INCIDENTAL OR CONSEQUENTIAL DAMAGES; (II) THE EXCLUSION OR LIMITATION OF LIABILITY FOR BODILY INJURY (INCLUDING PERSONAL INJURY AND DEATH); OR (III) THE EXCLUSION OR LIMITATION OF DAMAGES CAUSED DIRECTLY BY A GROSS OR INTENTIONAL FAULT, SUCH EXCLUSIONS OR LIMITATIONS MAY NOT APPLY.

6. RESPONSIBILITY FOR EQUIPMENT

You are responsible for the Equipment from the time it is rented by You until it is returned. Your responsibility includes, but is not limited to, ensuring the proper oil levels are maintained and proper fuel or fuel/oil mix is used, if applicable. If the Equipment is lost, stolen, or damaged under any circumstances while rented, regardless of fault, You shall be responsible for all charges to replace or repair the Equipment including any labour costs. If the Equipment is not returned clean, a minimum cleaning charge of \$25.00 will apply.

7. LOADING AND UNLOADING OF EQUIPMENT

In the event that The Home Depot's employees assist in loading or unloading of the Equipment, You assume the risk of, and hold The Home Depot harmless from any property damage or personal injuries in connection with loading and/or unloading the Equipment, save where the Equipment is being rented in the Province of Quebec.

8. EQUIPMENT FAILURE AND REPAIR

You agree to immediately discontinue the use of the Equipment should it become unsafe or in any state of disrepair, and You agree to notify The Home Depot of the facts surrounding such occurrences. The Home Depot may, in its sole discretion, make the Equipment operable within a reasonable time, or provide You with a similar piece of equipment, if available, or adjust the rental charges. This provision does not relieve You from the obligation imposed by other sections of this agreement. In all events, The Home Depot shall not be responsible for any injury or damage, including consequential damage, resulting from the failure or defect of any rental Equipment.

9. RENTAL CHARGES; RETURN OF THE EQUIPMENT

(a) The Equipment is rented to You subject to this Agreement for the Rental Price and for the Rented Period printed on page 1 of this Agreement. If the Equipment is rented to You on a monthly basis, a month is defined as being equal to (28) days. If You would like to extend the term of this rental beyond the time and date specified on the agreement under Date and Time Due In on page 1 of this Agreement, You must immediately notify The Home Depot to obtain approval to extend this Agreement and the terms for such an extension.

(b) If this Agreement has not been extended and You fail to return the Equipment when due, or You default on your obligations hereunder, You will incur and be charged an additional rental fee in the amount identified on page 1 of this Agreement on a weekly, recurring basis beginning on the 7th day following the end of the Rented Period ("Additional Rental Fees") until either (i) the Equipment is returned, or (ii) or the maximum rental charge identified on page 1 of this Agreement at the time of rental has been recovered. In the event that there are 4 consecutive weekly unsuccessful charges of the Additional Rental Fees made to your credit card, The Home Depot may take such steps as permitted by law to repossess the Equipment and/or be reimbursed the reasonable value of the of the Equipment based on the condition of the Equipment at the beginning of the Rented Period. In such event, You shall reimburse The Home Depot for all

costs incurred, including without limitation, reasonable legal fees. YOU EXPRESSLY AGREE AND HEREBY AUTHORIZE THE HOME DEPOT TO CHARGE TO YOUR CREDIT CARD ALL AMOUNTS SHOWN ON PAGE 1 OF THE AGREEMENT, AND ALL CHARGES SUBSEQUENTLY INCURRED BY YOU UNDER OR RELATED TO THIS AGREEMENT, INCLUDING BUT NOT LIMITED TO, LOSS OF OR DAMAGE TO THE EQUIPMENT, EXTENSION OF THE RENTED PERIOD, REPAIR COSTS, AND ANY CHARGES INCURRED FOR FAILURE TO TIMELY RETURN THE EQUIPMENT, INCLUDING ANY ADDITIONAL RENTAL FEES AND/OR EQUIPMENT REPLACEMENT FEES. To the extent permitted by law, You agree that an additional service charge of the lesser of (i) 1.5% per month (18% per annum), and (ii) the maximum rate permitted by law, shall be assessed on all delinquent accounts, until paid in full. You are prohibited from using any Home Depot credit line to pay for delinquent or past due accounts. You will not be permitted to rent any other equipment until your account is paid in full. If your payment towards the account is returned, denied, or otherwise unable to be processed, the balance due may be sent to a 3rd party collection agency. YOU HEREBY AGREE THAT YOU ARE NOT ENTITLED TO NOTICE OF DEFAULT OR NOTICE OF ANY ACTION OF ENFORCEMENT BY THE HOME DEPOT OTHER THAN WHAT IS EXPRESSLY PROVIDED FOR UNDER THIS AGREEMENT. Should The Home Depot fail to meet any of its obligations under this Agreement, your only remedy is repair or replacement of deficient Equipment or to receive, at The Home Depot's option, a rental charge adjustment.

(c) Notwithstanding any repossession of the Equipment by The Home Depot and/or payment of the reasonable value of the Equipment as described above, You shall remain responsible for amounts due and unpaid by You to The Home Depot under this Agreement, including any amount incurred by The Home Depot as a result of, or in connection with, the repossession of the Equipment as provided for in this clause. You acknowledge The Home Depot is entitled to take any or all of the action specified in clauses 9(a) and 9(b).

10. EVENTS OF DEFAULT

You acknowledge that You will be deemed to be in default under this Agreement if (i) You breach any term or provision of this Agreement, (ii) You permit a judgment against You to remain unpaid for a period of ten (10) days after the date of judgment, or (iii) any proceedings in bankruptcy, receivership or insolvency or for your reorganization or liquidation are commenced against You or your property.

11. EFFECT OF DEFAULT

You agree if any of the above events of default occurs, all rent and other charges then and thereafter payable by You to The Home Depot under this Agreement shall immediately accelerate and become due and payable to The Home Depot without notice or demand to You. You shall immediately and at your sole expense return the Equipment to The Home Depot as provided herein. The Home Depot may take steps to secure return of the Equipment and/or the reasonable value of the Equipment as provided in Clause 8 of this agreement. You acknowledge that no waiver by or on behalf of The Home Depot of any breach or default by You under this agreement shall be deemed a waiver of any future breach or default. No delay in exercising its rights shall constitute a waiver of any right or prejudice The Home Depot's exercise of any remedies in respect of any existing or future default.

12. COLLECTION COSTS

You agree to pay legal fees, collection fees, court costs and any other expenses incurred in collecting any charges under this agreement, in repossessing the Equipment or otherwise enforcing the terms of this Agreement.

13. CHARGES ON CREDIT CARDS

(a) You agree that The Home Depot is authorized to add applicable additional rental and insurance charges and taxes and The Home Depot's charges and expenses of cleaning the Equipment, if any, and other amounts which may be or become due under this Agreement to the applicable credit card transaction record. You acknowledge that this right is in addition to any other rights of The Home Depot under this Agreement or available to it at law.

(b) You agree to the reservation of credit, by credit card issuer, up to the estimated charges due under this Agreement and authorize to process a credit card voucher, if applicable, for all charges due under this Agreement.

14. PAYMENT & DEPOSITS

You will pay the Rental Price, without any offsets, in full at the time of return using a payment card approved by The Home Depot ("Customer Card"). To the extent permitted by law, You must notify The Home Depot in writing of any disputed amounts, including credit card charges, within four (4) days after the receipt of The Home Depot rental contract/invoice, or You shall be deemed to have irrevocably waived Your right to dispute such amounts. You agree to pay the deposit identified on page 1 of this Agreement ("Deposit"), without any offsets, in full at the time of rental using a Customer Card. You acknowledge that The Home Depot may apply the amounts of the Deposit to any amount owing to The Home Depot. The Deposit will only be returned to You after all amounts payable to The Home Depot are paid in full.

15. MODIFICATION OF AGREEMENT

This constitutes the entire agreement between You and The Home Depot, and You acknowledge that there are no collateral, oral, or other agreements outstanding. None of The Home Depot's rights may be changed and no extension of the term of this agreement may be made except in writing, signed by The Home Depot and You, and made part of this Agreement.

16. ASSIGNMENT

You acknowledge that The Home Depot may assign its rights under this agreement and transfer its title in Equipment without your prior written consent. You agree, however, not to sublet, loan or assign the Equipment.

17. DAMAGE PROTECTION

Damage Protection is an optional service offered by The Home Depot to cover repair or replacement charges if the Equipment rented by The Home Depot is damaged during normal use. The charge for the Damage Protection service is 15% of the total rental fee and will appear as a separate line item on the invoice. You must accept or decline the Damage Protection service. **Damage Protection is not insurance.** Damage Protection only covers the cost of repairs or replacement of the rented Equipment damaged during normal use of the Equipment. Damage Protection does not cover the loss of or damage to the Equipment during transport or loss or damage caused by theft, abuse, misuse, neglect, intentional acts or failure to follow the instructions provided for proper use and care of the rented Equipment. You expressly acknowledge and agree that You will be responsible for all such repair or replacement cost.

18. ENGLISH LANGUAGE

The parties hereto hereby acknowledge that they have required this Agreement and all related documents and notices to be drawn up in the English language. *Les parties aux présentes reconnaissent avoir requis que la présente convention et tous documents et avis connexes soient rédigés en langue anglaise.*

19. REPAIR COST

Customer agrees that an estimated "Repair Cost" shall be charged for equipment that is returned with damage due to abuse, misuse, neglect, intentional acts, and/or failure to follow the proper use and care instructions for the Equipment. The Repair Cost shall not exceed the fair market value of the tool. Customer acknowledges and agrees to pay the Repair Cost and authorizes The Home Depot to charge the Repair Cost to the Customer Card.

20. NOTICES

In compliance with your consent, or applicable law, or both, The Home Depot may elect to send any notices to Customer by any means determined by The Home Depot. If Customer has provided The Home Depot with an email address, The Home Depot may, in compliance with your consent, or applicable law, or both, send communications including notices to Customer by email and any such email notice by The Home Depot shall be valid notice for purposes of this Agreement, subject to applicable law.

Terms and Conditions of Rental Agreement – Vans/Trucks

These Terms and Conditions of Rental Agreement are part of the Rental Agreement ("Agreement") which consists of the following parts: the vehicle delivery agreement completed concurrently herewith (the "Vehicle Delivery Agreement"), this document (the "Terms and Conditions"), and any other supplemental Home Depot of Canada Inc. ("Home Depot") forms attached or provided from time to time, and a return document with final charges (such as the vehicle delivery invoice). This Agreement is for the rental of the vehicle and other rental property and accessories listed on the Vehicle Delivery Agreement (collectively the "Vehicle"). By signing the Vehicle Delivery Agreement or driving the Vehicle, I, the customer ("I," "Me," "My," or "Customer") agree with Home Depot to all the terms and conditions of this Agreement. A copy of this Agreement must be carried in the Vehicle at all times during the rental.

1. **VEHICLE:** I inspected the Vehicle and it is in good and usable condition and fit for My rental purposes, with no apparent defects except as noted on the Vehicle Delivery Agreement. **SAVE WHERE THE VEHICLE IS BEING RENTED IN THE PROVINCE OF QUEBEC, I AGREE THAT HOME DEPOT MAKES NO EXPRESS OR IMPLIED VEHICLE WARRANTY AS TO ANY MATTER WHATSOEVER INCLUDING, WITHOUT LIMITATION, THE CONDITION OF THE VEHICLE, OR THE VEHICLE'S MERCHANTABILITY OR FITNESS FOR ANY PARTICULAR PURPOSE. HOME DEPOT SHALL NOT BE LIABLE FOR ANY INCIDENTAL OR CONSEQUENTIAL DAMAGES.**
2. **PROHIBITED USE OF VEHICLE:** I will **NOT** use or permit the Vehicle to be used:
 - a) in violation of any federal, state/province or local law, speed limit, ordinance, or regulation;
 - b) push anything; nor to tow anything;
 - c) driven by anyone other than (i) the driver listed on the Vehicle Delivery Agreement, and/or (ii) his/her regular fellow employees, employer or business partner on a business rental, (ALL DRIVERS MUST BE PROPERLY LICENSED AND QUALIFIED, 21 YEARS OF AGE OR OLDER, AND HAVE MY PRIOR EXPLICIT WRITTEN OR VERBAL PERMISSION TO DRIVE THE VEHICLE);
 - d) an improved road or other paved surface, in a reckless or abusive manner, or while the driver is under the influence of alcohol or a controlled substance;
 - e) transport any car, truck, animal or human being inside the cargo section of the Vehicle;
 - f) to transport persons for hire, or to use the vehicle as a taxi or bus, or for the illegal transportation of liquor, cigarettes, a controlled substance or contraband;
 - g) haul any load that would make the Vehicle exceed the maximum load capacity (empty weight of Vehicle plus weight of load) indicated on the Vehicle or on the Vehicle Delivery Agreement, nor with any load improperly packed or secured;
 - h) in any area of strike, labour or civil disruption or violence, or natural disaster (such as hurricane or flood);
 - i) anywhere outside of Canada; and/or
 - j) STORE, TREAT, TRANSPORT OR DISPOSE OF ANY REGULATED, TOXIC OR HAZARDOUS SUBSTANCE OR WASTE (INCLUDING WITHOUT LIMITATION CORROSIVE, INFECTIOUS, POISONOUS, FLAMMABLE, EXPLOSIVE OR RADIOACTIVE SUBSTANCES AND MEDICAL WASTE) AS DEFINED IN ANY LAW.
3. **CHARGE:**
 - a) I agree to pay all charges due Home Depot on demand in Canadian currency or by Home Depot credit card or other device acceptable to Home Depot. Any deposit will be applied to any charges and Home Depot may charge any amounts due under this Agreement against any credit card used in connection with the Vehicle rental. The payment of charges by use of a credit card is governed by the terms of My cardholder agreement with the credit card issuer and I acknowledge receipt of the goods and/or services shown on this Agreement. I will pay the full rental rate for each full or partial rental period. There are three principal rental periods including (i) an hourly rental, (ii) a daily rental, and (iii) a weekly rental (each a "Rental Period" and collectively, the "Rental Periods"). The rental rate and additional charges for each Rental Period are set forth on the Vehicle Delivery Agreement and include the minimum charge applicable for each Rental Period plus any applicable overage charges.
 - b) **Failure to Extend Rental Period.** To extend the Rental Period specified in the Vehicle Delivery Agreement, I must obtain the approval of Home Depot prior to the expiration of such Rental Period. Should I fail to timely return the Vehicle at the conclusion of the Rental Period and/or fail to return the Vehicle in as good order and condition as when received, I shall be in default of this Agreement. Without limiting other remedies set forth in this Agreement, if I have not extended the Rental Period and I do not return the Vehicle prior to expiration of the Rental Period, I will incur and be charged an additional rental fee in the amount identified in the Vehicle Delivery Agreement on a weekly recurring basis beginning on the on the 3rd day following the end of the Rental Period ("Additional Rental Fees") until either (i) the Vehicle is returned, or (ii) Home Depot has received funds in the amount of the entire value of the Vehicle based upon the condition of the Vehicle at the beginning of the Rental Period ("Present Value").
 - c) **Breach of Terms and Conditions.** In the event Home Depot determines that I have violated any term or condition of this Agreement, Home Depot may take all actions necessary and as permitted by law to secure return of the Vehicle and/or funds equal to the Present Value. In such event, I shall reimburse Home Depot for all costs incurred including, without limitation, reasonable legal fees. I EXPRESSLY AGREE AND HEREBY AUTHORIZE HOME DEPOT TO CHARGE MY CREDIT CARD, ALL AMOUNTS SHOWN IN THE VEHICLE DELIVERY AGREEMENT, AND ALL CHARGES SUBSEQUENTLY INCURRED BY ME UNDER OR RELATED TO THIS AGREEMENT, INCLUDING BUT NOT LIMITED TO, EXTENSION OF THE RENTAL PERIOD, ANY CHARGES INCURRED IN CONNECTION WITH THE RECOVERY OF THE EQUIPMENT, AND ANY CHARGES INCURRED FOR FAILURE TO RETURN THE VEHICLE, INCLUDING WITHOUT LIMITATION ANY ADDITIONAL RENTAL FEES AND/OR VEHICLE REPLACEMENT FEES (less any paid additional rental fees). If and to the extent required by applicable payment card network rules, Home Depot will obtain My additional authorization to charge My card, if applicable, for any insurance costs and/or charges related to Vehicle loss, theft, or damage during the Rental Period.
 - d) **Payments.** Home Depot, in its sole discretion, may permit me to make alternative arrangements to promptly pay the Additional Rental Fee. Home Depot may receive updated card account information from the card issuer. To the extent permitted by law, I agree that a service charge of the lesser of (i) 1.5% per month (18% per annum), and (ii) the maximum rate permitted by law, shall be assessed on all delinquent accounts, until paid in full. Deposits will be returned only after all amounts payable to Home Depot are paid in full. I am prohibited from using any Home Depot credit line to pay for delinquent or past due accounts and any future rentals will be postponed until My account is paid in full. If My payment towards the account is returned, denied, or otherwise unable to be processed, the balance due may be sent to a 3rd party collection agency on the 31st day after the Rental Period expires.
 - e) **No Notice.** I HEREBY AGREE THAT I AM NOT ENTITLED TO NOTICE OF DEFAULT OR NOTICE OF ANY ACTION OF ENFORCEMENT BY HOME DEPOT OTHER THAN WHAT IS EXPRESSLY PROVIDED FOR UNDER THIS AGREEMENT. Should Home Depot fail to meet any of its obligations under this Agreement, My only remedy is repair or replacement of deficient Vehicle or to receive, at Home Depot's sole discretion, a

rental charge adjustment.

4. **THEFT AND DAMAGE TO VEHICLE:** Subject to applicable law, rule or regulation, Customer shall be responsible for all loss of and damage to the Vehicle (including, without limitation, any deductible Home Depot is required to pay and all loss or damage to the spare tire, jack, loading ramps, and any reduction in the overall value of the Vehicle that remains after repair), plus actual towing, storage, impound and other related expenses. I will immediately report any incident, accident, loss, damage or theft of the Vehicle to Home Depot and will promptly complete a Home Depot Accident form.
- a) Vehicle Damage Protection: Vehicle damage protection is an optional service offered by The Home Depot during the Rental Period for an additional charge ("Vehicle Damage Protection"). Customer must accept or decline Vehicle Damage Protection. In the event Customer elects for Vehicle Damage Protection services: (i) the charge for Vehicle Damage Protection is **15% of the Rental Price** and will appear as a separate line-item on the Agreement; and (ii) this optional service modifies this Agreement to relieve Customer of liability for Covered Damages (as defined below). **Vehicle Damage Protection is not insurance and The Home Depot may make a profit on its Vehicle Damage Protection program.**
- b) For purposes of this Agreement, the term "**Covered Damages**" will mean any non-collision related physical damage to a Vehicle up to the first \$500 per incident. The Covered Damages will be subject to the exclusions set forth in Section 4c) below. Customer will remain responsible for all costs and fees after the first \$500 per incident, regardless of whether caused by Customer, an Authorized Driver (as defined below), a third party, an act of God, or any other cause. For the purposes of this Agreement, "**Authorized Driver**" means any or all of the following people to the extent that they are at least 21 years old and have a valid driver's license for the class of Vehicle being rented: (i) Customer or (ii) Customer's regular fellow employees, employer or business partner on a business rental having Customer's prior explicit written or verbal permission to drive such Vehicle. Notwithstanding anything to the contrary herein, Customer will be fully responsible for the actual cash value of a Vehicle due to a theft of the Vehicle, unless: (i) Customer or Authorized Driver has possession of the ignition keys, (ii) an Authorized Driver files an official report of the theft with the applicable law enforcement agency within twenty-four (24) hours of learning of the theft, and (iii) Customer and any Authorized Drivers cooperate with The Home Depot and law enforcement in providing all relevant information concerning the theft.
- c) Exclusions: Vehicle Damage Protection will not cover: (i) loss arising out of any collision or accident involving the Vehicle; (ii) loss arising out of the use of the Vehicle while Customer or Authorized Driver is under the influence of alcohol or drugs; (iii) loss arising out of the operation of Vehicle by any driver other than an Authorized Driver; (iv) property damage to property transported or in the care, custody, or control of Customer or Authorized Driver; (v) liability arising out of the use of Vehicle, which was obtained based on false, misleading, or fraudulent information; (vi) loss arising out of the use of Vehicle when such use is otherwise in violation of the terms and conditions of this Agreement (including the terms and conditions of any master rental agreement with The Home Depot); and (vii) loss or damage caused by abuse, misuse, or intentional acts.
5. **PERSONAL ACCIDENT AND CARGO RESPONSIBILITY:** I AGREE THAT HOME DEPOT WILL HAVE NO LIABILITY WHATSOEVER AND I AGREE TO FOREVER RELEASE, INDEMNIFY, AND HOLD HOME DEPOT HARMLESS FOR:
 - (a) any loss or damage to My cargo or other property owned by Me or in My possession, EVEN WHEN THE LOSS OR DAMAGE WAS DUE TO HOME DEPOT'S FAULT OR NEGLIGENCE, and I assume all such risk of loss or damage; and
 - (b) any claims, damages or losses arising from injuries of any nature whatsoever or death to Me, My agents, employees, guests, family members of My household or other occupants of the Vehicle, EVEN WHEN SUCH DEATH OR INJURY WAS DUE TO HOME DEPOT'S FAULT OR NEGLIGENCE, and I assume all such risk and liability.
6. **RETURN OF VEHICLE BY CUSTOMER:** I will return the Vehicle and all accessory items in the same good condition as received, on the due date and at the time specified on the Vehicle Delivery Agreement, or upon Home Depot's demand, to the place from which the Vehicle was delivered to Me ("**Destination Location**"). If no due date and time are specified, I will return the Vehicle upon the earlier of Home Depot's demand or before the end of the applicable Rental Period. In addition to all other charges due and remedies available to Home Depot under this Agreement, I WILL BE LIABLE FOR A LATE CHARGE IF THE VEHICLE IS NOT RETURNED BY THE TIME SPECIFIED ON THE VEHICLE DELIVERY AGREEMENT. These late charges are set forth on the Vehicle Delivery Agreement. If I am going to be late, I agree to notify Home Depot before the end of the Rental Period by calling My Home Depot Destination Location. If I fail to return the Vehicle prior to the end of the Rental Period and I fail to notify My Home Depot Destination Location that I will be late, or if information provided to Home Depot by Me is false, Home Depot may consider the Vehicle stolen and take legal action, both criminal and civil, to recover it. I agree not to sublease or transfer the Vehicle, which I acknowledge is owned by Home Depot and any attempt to do so is void and constitutes a breach of this Agreement. Customer and/or the driver of the Vehicle shall in no event be or be deemed to be the agent, servant or employee of Home Depot in any manner or for any purpose whatsoever.
7. **BREACH OF AGREEMENT AND LIEN ON PROPERTY:** If I do not honour My obligations under this Agreement, or if the Vehicle is illegally parked or apparently abandoned, or if any information I provide to Home Depot is false, or if the Vehicle is overdue without notification, Home Depot may, at My expense, without prior notice, recover the Vehicle wherever it is located and terminate the Agreement without prejudice to any Home Depot rights. Home Depot will be entitled to reasonable costs, expenses, and (where the vehicle being rented is outside of the Province of Quebec) attorneys' fees to repossess any Vehicle and enforce this Agreement. Home Depot will have a lien on all of My property in the Vehicle or any trailer attached to the Vehicle for all charges and expenses incurred including those related to damage to the Vehicle. If I do not pay all charges when due, Home Depot may sell at public or private sale, without notice to Me, all such property to satisfy these charges and all costs of the sale.
8. **MAINTENANCE OBLIGATION INSPECTION:** I agree to maintain adequate oil and water levels in the engine and, as directed by Home Depot, to have any necessary servicing or maintenance of the Vehicle performed during the rental. No one other than Home Depot shall perform any service, repairs, or maintenance to the Vehicle during the rental unless Home Depot gives prior approval for such work. I understand that Home Depot may fully inspect the Vehicle at any time wherever it is located. I AM RESPONSIBLE FOR ALL MECHANICAL DAMAGE TO THE VEHICLE IF IT IS USED IN VIOLATION OF ANY PROVISION OF THIS AGREEMENT.
9. **LICENSES, FEES, PERMITS, TICKETS, AND FINES:** I agree to pay for any licenses, fees, permits, tickets, fines, penalties or tolls required by My use or operation of the Vehicle including forfeiture or seizure resulting from the use or operation of the Vehicle. I also agree to file or assist Home Depot in filing any and all returns or reports required, if any, by law as a result of such use and operation. HOME DEPOT COOPERATES WITH ALL FEDERAL, STATE/PROVINCIAL AND LOCAL LAW ENFORCEMENT OFFICIALS NATIONWIDE TO PROVIDE THE IDENTITY OF ANY CUSTOMER WHO OPERATES THE VEHICLE.
10. **NEGATIVE PLEDGE:** I agree, warrant and covenant that I shall not sell, loan, or otherwise transfer the vehicle to any person, grant, permit, or suffer to exist, any lien, encumbrance, security interest, charge, title retention or other like right over the Vehicle in favour of any person other than Home Depot. If any said sale, loan, or transfer, or lien, encumbrance, security interest, charge, title retention or other like right is created, claimed, registered or enforced over the Vehicle, I shall immediately act to cancel, discharge, acquit, or defend Home Depot against same, holding

Home Depot entirely harmless for such claims, and paying all legal costs of Home Depot incurred in respect of same.

11. LIABILITY PROTECTION:

- A. I warrant that I have automobile liability insurance with a minimum amount of liability of \$2,000,000 that covers my operation of non-owned vehicles, including the rented Vehicle, and that My automobile liability insurance is primary (in those jurisdictions that permit the same). I understand that the Vehicle is also covered by automobile liability insurance provided by Home Depot but (in those jurisdictions that permit same) that Home Depot's liability insurance protection is secondary and does not apply until after exhaustion of all insurance and/or other protection available to Me and/or any injured passenger in the Vehicle (automobile liability insurance, no-fault insurance, personal insurance protection, employer's insurance, and/or any other protection or indemnification, whether primary, excess or contingent) and then such protection applies only to the extent it is needed to meet, or on a cumulative basis with all such insurance and/or other protection available to the driver and/or injured passengers, the minimum financial responsibility limits and/or minimum no-fault benefits required by applicable law.
- B. I agree, prior to renting the Vehicle and as a condition precedent thereto, to provide satisfactory evidence of My automobile liability insurance policy to Home Depot upon request. In addition, a copy of the automobile liability coverage provided by Home Depot is available for My inspection at Home Depot's main offices. I agree to comply with and be bound by all of the terms, conditions, limitations and restrictions of My insurance policy and the insurance policy provided by Home Depot (even those that are not specifically mentioned in this Agreement), and all such terms, conditions, limitations, and restrictions are incorporated by reference into this Agreement.
- C. I agree to defend, release, indemnify and hold Home Depot and its insurance carriers harmless from and against (i) any and all expense (including legal fees and charges), damage, and/or liability arising out of all claims (EVEN IF DUE TO HOME DEPOT'S FAULT OR NEGLIGENCE) which are excluded from or in excess of coverage or not otherwise covered under the applicable automobile liability coverage provided by Home Depot; (ii) all other claims by or against Home Depot arising out of My use or operation of the Vehicle; and (iii) all other claims by or against Home Depot arising out of My failure to comply with all terms of the Agreement.
- D. The automobile liability coverage provided by Home Depot does NOT apply:
(i) if the Vehicle is obtained, used or operated in violation of any provision of this Agreement, (ii) to loss or damage to property owned by Me, in the Vehicle or for any reason in My care, custody or control, (iii) to any injuries of any nature whatsoever to Me, My agents, employees, guests, family members of My household, or other occupants of the Vehicle, (iv) to any tow dolly, car carrier or trailer and/or (v) for punitive, exemplary, incidental or consequential damages, fines or penalties.
- E. I waive and am not provided with uninsured or underinsured motorist coverage, personal injury protection coverage, medical payment coverage, and/or supplementary no fault coverage. If any such coverage cannot be waived or excluded under the law of the province in which the accident occurs or if such waiver exclusion is otherwise unenforceable, such coverage will only be provided under the automobile liability coverage provided by Home Depot.
12. **FUEL:** RENTAL RATES DO NOT INCLUDE THE COST OF FUEL. I UNDERSTAND THAT I AM RESPONSIBLE FOR ALL FUEL DURING THE COURSE OF THE RENTAL AND FOR RETURNING THE VEHICLE WITH THE SAME LEVEL OF FUEL AS WAS PROVIDED UPON COMMENCEMENT OF THE RENTAL. I understand that I may fill up the fuel tank with the required amount of fuel at My expense at the Destination Location (if the Destination Location sells fuel) or at any fuel retailer of My choice. I understand that if I elect not to refill the fuel tank of the Vehicle with the requisite amount of fuel prior to return, I will be charged a fuel and service charge of \$100.
13. **SEVERABILITY:** In the event any provision of this Agreement is determined by a court of competent jurisdiction to be in violation of or prohibited by any applicable law, such provision shall be of no force and effect to the extent of such violation or prohibition without otherwise invalidating the other provisions of this Agreement.
14. **FURTHER ASSURANCES:** I shall do any further act and execute, acknowledge, deliver, file, register and record any further documents which Home Depot may reasonably request as a result of the terms hereof.
15. **GOVERNING LAW:** This Agreement shall be governed by and interpreted in accordance with the substantive laws of the Province in which the Vehicle is rented.
16. **MODIFICATION:** This Agreement may not be modified, amended or terminated except by an agreement in writing executed by the parties hereto.
17. **ENGLISH LANGUAGE:** The parties hereto hereby acknowledge that they have required this Agreement and all related documents and notices to be drawn up in the English language. Les parties aux présentes reconnaissent avoir requis que la présente convention et tous documents et avis connexes soit rédigés en langue anglaise.
18. **NOTICES:** Home Depot may elect to send any notices to Customer by any means determined by Home Depot. In particular, if Customer has provided Home Depot with an email address, Home Depot may send notices to Customer by email and such email notice by Home Depot shall be valid notice for purposes of this Agreement.

NO PROTECTION OF ANY KIND (INCLUDING PHYSICAL DAMAGE AND LIABILITY PROTECTION) WILL BE EFFECTIVE IF: (A) THE CUSTOMER IS IN VIOLATION OF THIS AGREEMENT, AND/OR (B) CUSTOMER CONVERTS THE VEHICLE BY FAILING TO RETURN IT FOR ANY REASON WHEN DUE.